

Form No: HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

W.P. No.14269/2019

Munir Ahmad

Versus Member (Judicial-III), BOR
etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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25.09.2019 Mr. Munir Ahmad Shahid, Advocate for the petitioner.

Through this constitution petition the petitioner has called in question order dated 13.06.2018, 14.01.2019, 26.02.2019, 11.06.2019 and 06.08.2019 passed by respondents No.1 to 5-Revenue Authorities up to the Board of Revenue on the ground that the same do not properly decide the dispute between the parties and are against the facts of the case and law on the subject, hence the same are liable to be set aside.

2. Perusal of record shows that through an application before the Deputy Commissioner, Multan, Fakhar-uz-Zaman S/o Ghulam Shabir requested that on 15.11.2018 M/s Munir Ahmad etc. illegally and forcibly occupied mango orchard owned by his father Ghulam Shabir and cut down mango trees and took them away. The Deputy Commissioner after visiting the site in order to resolve the dispute modified the wandas vide order dated 14.01.2019. That order was assailed by Munir Ahmad through appeal before the Commissioner, Multan Division, Multan which

was dismissed vide order dated 11.06.2019 against which he filed revision before the Board of Revenue, Punjab which has also been dismissed on 06.08.2019. The dispute relating to Khasra No.128/16 and 17 is pending for quite some time which is a mango orchard. There is concurrent findings of fact recorded by the Revenue Authorities below that the petitioner's possession on the said land was illegal and such unlawful act of the petitioner was proved in an inquiry conducted by the District Collector, wherein he declared the petitioner as a trespasser in the land of the respondent. These findings of facts were recorded by the learned forums below which are competent to decide the matter by keeping in view the material available with them. The petitioner disputes the said findings and claims the same to be erroneous and incorrect, however, determination of disputed facts cannot be called in question before this Court in its constitutional jurisdiction as this Court ordinarily does not interfere in the finding of facts recorded by the learned Courts below unless some illegality, perversity and erroneous exercise of jurisdiction is floating on the surface of record whereas the claim of the petitioner requires recording of evidence and resolution of disputed facts and the petitioner has failed to show any illegality glaring on the record, which could be determined without recording of evidence or would not require deeper appreciation of disputed facts, therefore, this writ petition under article 199 of the Constitution of Islamic Republic of

Pakistan, 1973 is not maintainable, hence, the same is hereby dismissed.

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(Muzamil Akhtar Shabir)
Judge